

National ID and Registration Act, 2020

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Now, therefore, the Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "National Identity Card and Registration Act, 2076 (2019)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Biometric details" means the biometric details pursuant to sub-section (3) of Section 7.

(b) "Data repository" means the electronic data repository pursuant to Section 30, and the term also denotes the record book or electronic record established for the purpose of storing data.

(c) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(d) "Registration book" means the record register book established for keeping registrations and civil records, and the term also denotes the data repository built by using modern information technology.

(e) "Registration" means the act of keeping records to identify citizens and registering vital events.

(f) "Registrar" means the Registrar pursuant to Section 17.

(g) "Identity Number" means the National Identity Number provided pursuant to Section 6.

(h) "Identity Card" means the National Identity Card provided pursuant to Section 9.

(i) "Person eligible to obtain an Identity Card" means a person who has met the qualifications pursuant to Section 4.

(j) "Migration" means the act of permanently moving residence from one local level to another local level within Nepal or from one ward to another ward of the same local level, and the term also denotes the act of moving to reside abroad or coming to reside in Nepal from abroad, and the act of temporarily moving residence for a period exceeding one hundred eighty days.

(k) "Ministry" means the Ministry of Home Affairs of the Government of Nepal.

(l) "Director General" means the Director General of the Department.

(m) "National Identity Management Information System" means the electronic technology-based data storage system established by the Government of Nepal for the purpose of integrally managing information and details of citizens for distribution of National Identity Cards and linking this with services, facilities, and development plans available from the State.

(n) "Department" means the Department of National Identity Card and Registration.

(o) "Personal details" means the name, surname, address, sex, date of birth, name of father, mother, husband, wife, grandfather, grandmother, and related details that identify a person, and the term also denotes the personal details relating to qualifications, profession, occupation, income, and ownership of a person held in any office or body of the Government of Nepal.

(p) "Vital event" means the birth, death, marriage, divorce, and migration of a person.

(q) "Coordination Committee" means the Coordination Committee pursuant to Section 37.

(r) "Local Authority" means the Chief District Officer of the concerned district, and the term also denotes any other officer designated by the Government of Nepal by publishing a notice in the Nepal Gazette.

(s) "Local level" means a Rural Municipality or Municipality.

Chapter-2

National Identity Card and Identity Number

3. Applicability of Identity Card: The National Identity Card shall come into force in a district designated by the Government of Nepal by publishing a notice in the Nepal Gazette from the date specified in such notice.

4. Eligibility to Obtain Identity Card: (1) A person who has acquired citizenship of Nepal or who has met the qualifications to acquire citizenship of Nepal pursuant to the prevailing law shall be eligible to obtain a National Identity Card under this Act. No Nepali citizen shall be deprived of obtaining a National Identity Card.

(2) Notwithstanding anything contained in sub-section (1), a Nepali citizen who has not attained the age for acquiring citizenship may obtain a minor National Identity Card as prescribed.

5. Duty to Provide Information: The concerned person shall have the duty to provide the details required for the Identity Number and Identity Card, to receive the Identity Card with the Identity Number, and to inform the Local Authority if the details mentioned in the Identity Card are changed or if the Identity Card becomes unusable for any reason.

6. Identity Number: (1) While providing an Identity Card, a National Identity Number shall be provided by the Director General to a person eligible to obtain an Identity Card in a non-repetitive manner.

(2) Even in the event of the death of a person who has obtained an Identity Number, or if the Identity Card of such person is canceled or ceases to exist for any reason, the Identity Number provided under sub-section (1) shall remain valid.

(3) At the time of birth registration of a child of a Nepali citizen residing in a district where the Identity Card has been implemented pursuant to Section 3, the local Registrar shall obtain an Identity Number from the Department as prescribed and provide such Identity Number to the concerned person.

(4) Biometric details of the concerned person shall not be required to provide an Identity Number under sub-section (3).

(5) Notwithstanding anything contained in sub-section (4), in circumstances where a minor National Identity Card is to be provided, personal and biometric details as prescribed shall also be submitted. Provided that a person who has obtained a minor National Identity Card shall, upon taking the National Identity Card under this Act, submit biometric details again.

(6) Other provisions relating to the Identity Number shall be as prescribed.

7. Application for Identity Card: (1) A person residing in a district where the Identity Card has been implemented pursuant to Section 3 and who has attained the age of sixteen years at the time of implementation of the

Identity Card shall submit an application to the Local Authority within two years from the date of implementation of the Identity Card in that district, and a person who attains the age of sixteen years after the implementation of the Identity Card shall submit an application within two years from the date of attaining such age, to obtain the Identity Card. (2) A person submitting an application under sub-section (1) shall mention the Identity Number if obtained, and if not obtained, shall state the same. (3) After receiving an application under sub-section (1), the Local Authority shall collect personal and biometric details as prescribed, including an electronic (digital) photograph clearly showing the facial features of the applicant, electronic fingerprints of all ten fingers of both hands, iris, and signature. Provided that while collecting biometric details, in the case of a person who does not have some or all fingers, a note of that fact shall be made and as many biometric details as possible shall be collected. (4) If a person who did not submit an application for an Identity Card within the period under sub-section (1) submits an application requesting an Identity Card after such period, such person shall also pay a late fee as prescribed. (5) The format of the application to be submitted under this section and the details of documents to be submitted with the application shall be as prescribed. (6) While submitting an application under this section, arrangements shall be made to allow submission in electronic format as prescribed. 8. Investigation of Application: (1) Based on the application received under Section 7, the Local Authority shall conduct necessary investigation. (2) During the necessary investigation under sub-section (1), if any additional documents or details are required, the Local Authority may request such documents or details from the applicant and conduct further investigation. (3) If, upon investigation conducted by the Local Authority under sub-section (1), the applicant is found eligible to obtain an Identity Card, the Local Authority shall, after obtaining the required personal and biometric details under this Act, recommend to the Department to provide the Identity Card. 9.

Provision of Identity Card: (1) The Local Authority shall send the application received under Section 7 and the details along with the application of the person recommended for providing the Identity Card under Section 8 to the Department for the purpose of keeping records and processing. (2) Upon maintaining the record of the details received under sub-section (1), the Director General shall issue a National Identity Card based on smart card technology containing biometric details, electronic chip, and security features. (3) The following details of the concerned person shall be mentioned visibly on the visible part of the Identity Card:- (a) Name, surname, (b) Date of birth, (c) Sex, (d) Nationality, (e) Identity Number, (f) Photograph, (g) Date of issue of Identity Card and issuing authority, (h) Permanent address, (i) Type of citizenship and citizenship number (in the case of a person who has obtained a citizenship certificate). (4) An Identity Card shall be provided to a person who has obtained Nepali citizenship and has applied for the Identity Card on the basis of citizenship, and to a person who has not obtained citizenship but is eligible to obtain Nepali citizenship on the basis of evidence as prescribed. (5) Other procedures, including details to be attached for a minor National Identity Card and the format of the Identity Card, shall be as prescribed. 10. Validity and Use of Identity Card: (1) Notwithstanding anything contained in the prevailing law, after the implementation of the Identity Card, the Identity Card shall have to be produced when obtaining any service or facility provided by any body or institution owned by the Government of Nepal or the private sector, or when requesting such service or facility.

Provided that, if the details of a person can be viewed on the basis of the Identity Number, such facility may be obtained on the basis of the Identity Number even without the Identity Card.

(2) The Identity Card shall be recognized as the main basis for obtaining public services and as proof of identity of a person.

(3) If any government or private institution has issued an identity card for providing any service or if there is a

provision requiring any identity card for that purpose, the Identity Number or Identity Card under this Act may be used instead of such identity card.

(4) For the purpose of using the Identity Number or Identity Card under sub-section (3), the concerned government or private institution shall construct the necessary infrastructure, and the Ministry may, upon collecting a fee as prescribed, provide access to such institution to details as prescribed among the details collected under this Act.

(5) After the details included in identity cards or certificates issued for any purpose under the prevailing law have been included in the National Identity Management Information System under this Act, the Government of Nepal may, by publishing a notice in the Nepal Gazette, make necessary arrangements so that the work of such identity cards or certificates can be done from the National Identity Card itself.

(6) Other provisions relating to the validity and use of the Identity Card shall be as prescribed. 11. Maintenance of Records: (1) In the electronic chip of the Identity Card to be provided under this Act and in the National Identity Management Information System, records of the following details of the person to whom the Identity Card or Identity Number has been provided shall be maintained:-

- (a) Name, surname,
- (b) Date of birth,
- (c) Sex,
- (d) Nationality,
- (e) National Identity Number,
- (f) Date of issue of Identity Card and issuing authority,
- (g) Photograph,
- (h) Address (permanent and temporary),
- (i) Type of citizenship and citizenship number (in the case of a person who has obtained a citizenship certificate),
- (j) Biometric details,
- (k) Name of father and mother,
- (l) Name of grandfather and grandmother,
- (m) Name of husband or wife,
- (n) Other details as prescribed.

(2) The procedure for updating personal and biometric details of a person who has obtained an Identity Card and providing an updated Identity Card on that basis shall be as prescribed. 12.

Correction of Details: (1) If there is any error in the details mentioned in the Identity Card or if details need to be added or removed, the concerned person shall submit an application in the format as prescribed to the body or authority prescribed, requesting correction or addition/removal of such details. (2) Details may be corrected based on the application under sub-section (1). (3) When correcting details under this section, the Identity Number shall not be changed. 13. Cancellation of Identity Card: (1) The Ministry or an authority designated by the Ministry may cancel an Identity Card in any of the following circumstances:- (a) If a person who is not eligible under Section 4 has obtained an Identity Card, (b) If an Identity Card has been obtained by submitting false details, (c) If a foreign citizen has obtained an Identity Card contrary to this Act, (d) If the person who has obtained the Identity Card is not a citizen of Nepal. (2) A person dissatisfied with a decision to cancel an Identity Card under sub-section (1) may appeal to the concerned High Court within thirty-five days from the date of receipt of notice of such decision. 14. Identity Card Ceasing to Exist: (1) If the person

who has obtained an Identity Card dies, the Identity Card of the deceased shall not remain valid. (2) In the circumstance under sub-section (1) where the Identity Card ceases to exist, the record thereof shall be updated, and the details of the deceased kept in the data repository and records shall be preserved securely.

15. Recording of Investigation: (1) If proceedings for the cancellation of an Identity Card obtained by a person under Section 13 have been initiated, the Department shall indicate in the electronic record relating to the Identity Card of the concerned person that proceedings are ongoing, preventing the use of the Identity Card until the conclusion of the proceedings. (2) If it appears that the Identity Card is to be maintained as a result of the proceedings under sub-section (1), arrangements shall be made so that the record of such investigation remains only in the data repository. 16.

Provision Regarding Duplicate: (1) If an Identity Card taken under this Act is lost, destroyed, becomes unusable, if details on the visible part of the Identity Card need to be changed, or if the Identity Card cannot be used for any other reason, the concerned person shall submit an application in the prescribed format to the Local Authority to obtain a duplicate thereof. (2) If an application is submitted under sub-section (1) and upon investigation the fact is found to be true, the Local Authority shall forward it with a recommendation to the Department, and the Department shall, after noting the record and collecting a fee as prescribed, provide a duplicate of the Identity Card to the applicant. (3) Other provisions relating to the duplicate Identity Card shall be as prescribed.

Chapter-3 Provisions Relating to Registration

17. Registrar: (1) For the purpose of this Act, the Director General of the Department shall be the Central Registrar. (2) The employee authorized to act as the administrative head of the ward office of each Rural Municipality or Municipality, the officer designated to perform registration-related work in Nepali missions abroad, and other officials designated by the Director General shall act as local Registrars under the authority of the Central Registrar. (3) For registration management, each ward office and other offices designated by the Ministry shall act as local registration offices. 18.

Notification of Vital Event: (1) In the following circumstances, the following persons shall notify the office of the local Registrar by filling in the form as prescribed within thirty-five days of the occurrence of such event for the registration of the vital event:- (a) Notification of birth by the father or mother, and in their absence, by a person of the family who has attained the age of eighteen years, (b) Notification of death by the father, mother, husband, wife, son or daughter, and in their absence, by a person of the family who has attained the age of eighteen years, (c) Notification of marriage by both husband and wife, (d) Notification of divorce by either of the concerned persons whose marriage has been dissolved, (e) Notification of migration by a person of the family who has attained the age of eighteen years. (2) If the vital event occurs outside Nepal, the person having the duty to notify under sub-section (1) shall notify the concerned mission within thirty-five days, or within thirty-five days after arriving in Nepal, notify the office of the local Registrar. (3) A person having the duty to notify a vital event under sub-section (1) may grant a power of attorney to any person for the registration of such notification. (4) In the absence of a person having the duty to notify a vital event under sub-section (1), a person as prescribed shall make such notification. (5) When notifying a vital event under this section, arrangements may be made to notify through electronic means as prescribed. 19.

Registration of Vital Event: (1) Upon receipt of a notification under Section 18, the local Registrar or an authorized employee of the mission shall, as follows, register such event in the relevant registration book:- (a) Check whether the form filled by the person coming to notify is correct or not, and if not correct, have it corrected, and (b) If the person coming to notify is illiterate, fill the form himself/herself or have it filled according to what that person says, read it out, and have the thumbprint of that person affixed. (2) While registering a notification of divorce, registration shall be done also considering the decision made by the court

in that respect. (3) If a vital event is brought for registration after the expiry of the period under sub-section (1) or (2) of Section 18, such vital event shall be registered upon levying a late fee as prescribed. (4) After a vital event is registered under this section, the local Registrar or the mission shall send the details thereof to the Department. (5) Based on the details received under sub-section (4), the Department shall update the details in the personal record of the concerned person. (6) If any vital event of a foreigner residing in Nepal needs to be registered, notification shall be made to the local Registrar of the place where the foreigner resides, along with evidence as prescribed. (7) While making notification under sub-section (6), in the case of a foreign citizen whose diplomatic mission is located in Nepal, the recommendation of the concerned diplomatic mission shall also be submitted. (8) After receiving notification under sub-section (6), the local Registrar shall conduct necessary inquiry and register the vital event of such foreigner. (9) Other provisions relating to the notification and registration of vital events of foreigners residing in Nepal shall be as prescribed. 20. Issuance of Certificate: (1) After the notification of a vital event is registered under Section 19, the local Registrar shall issue a certificate of registration of the vital event to the persons under sub-section (1) of Section 18. (2) While registering vital events other than the death registration of a person residing in a district where the Identity Card has been implemented under Section 3, a certificate of registration of such vital event shall be issued only after the Identity Number under this Act has been obtained. (3) Other provisions relating to the issuance of certificates of vital events under this section shall be as prescribed. 21.

Acts Not to be Registered or Certified: (1) Notwithstanding anything contained elsewhere in this Act, vital events including marriage that are void ab initio under the prevailing law shall not be registered or certified. (2) If a vital event is brought for registration under sub-section (1), a separate record of such event shall be kept and submitted to the concerned body or authority for action under the prevailing law. (3) Nothing contained in this section shall adversely affect the registration of the birth of a child born as a result of a void marriage. 22. Issuance of Copy of Registration Certificate: (1) If the certificate of registration provided under Section 20 is lost, destroyed in any way, or it is proven that it cannot be used, the concerned person shall submit an application to the office of the concerned local Registrar. (2) If the content of the application submitted under sub-section (1) appears reasonable, the concerned local Registrar shall issue a copy of the registration certificate upon collecting a prescribed fee. 23. Deployment of Employees to Prepare Family Rolls: (1) If it appears necessary to prepare rolls for the purpose of registering vital events and preparing civil records, the Ministry may deploy employees for that work. (2) It shall be the duty of the concerned person to provide the details requested or answer the questionnaire asked by the employee deployed under sub-section (1). 24. Validity of Registration: The certificate of registration provided under Section 20 shall be evidence of the occurrence of the vital event. Such evidence may be submitted to any office or court and used in personal transactions. Provided that, if it is proven that a person has obtained a certificate of registration by submitting false details, such certificate of registration shall be canceled by the Local Authority. 25. Correction of Details: (1) If the name, surname, age, or other details mentioned in the certificate of registration of any vital event need to be corrected, the concerned person may submit an application in the prescribed format to the office of the local Registrar once. (2) Upon receipt of the application given under sub-section (1), the local Registrar shall investigate the matter and, if deemed appropriate, may correct the age, name, surname, or other details in the registration book and the certificate of registration once. (3) The local Registrar shall also provide information about the correction made under sub-section (2) to the Department.

Based on the details thus received, if the concerned person has an Identity Number, the Department shall also correct the details of such person in that Identity Number.

(4) Notwithstanding anything contained in the prevailing law, the details of any person in the registration book under this Act and in the certificate of registration provided shall not be corrected more than once. 26. Inspection of Vital Event Registration Book: If the concerned person wishes to see the vital event and civil record registration book kept in the office of the concerned local Registrar, the concerned Registrar shall allow inspection of the registration book upon collecting a prescribed fee. 27. Submission of Details: (1) The local Registrar shall, as soon as possible, send the details of the vital events registered each month to the Central Registrar and the concerned body of the provincial government.

(2) Based on the details received under sub-section (1), the Central Registrar and the concerned body of the provincial government shall update the records and publish an annual report. 28. Duty to Provide Assistance: (1) If the concerned Rural Municipality, Municipality, or Ward Office learns of a vital event that is required to be registered under this Act, it shall remind and persuade the concerned person and provide necessary assistance in registering the notification of such event.

(2) It shall be the duty of the concerned Rural Municipality, Municipality, and the body conducting local administration to provide necessary assistance to employees or Registrars deployed in the course of work relating to National Identity Card and registration required to be done under this Act or the rules made under this Act. 29. Special Provisions Regarding Event Registration: (1) A person who adopts a son or daughter under the prevailing law shall register a notification thereof with the concerned local Registrar.

(2) If a person has a stillbirth or a child dies immediately after birth, a notification thereof may be registered with the local Registrar.

(3) Other provisions relating to the registration of notifications submitted under sub-section (1) or (2) and the issuance of certificates by registering events accordingly shall be as prescribed. Chapter-4

Electronic Data Repository Management

30.

Establishment of Electronic Data Repository: (1) There shall be a central electronic data repository for the integrated storage and use of personal and biometric details collected under this Act. (2) Arrangements shall be made for linking between the data repository established under sub-section (1) and data repositories in various government offices and bodies. (3) Details collected by provinces, districts, and local levels under the prevailing law may be linked to the data repository under sub-section (1). (4) Arrangements shall be made for backup of the data stored under sub-section (1) at the Department and also at the Government Data Center designated by the Government of Nepal. (5) Other provisions relating to data entry, backup, data processing, and use in the data repository under this section shall be as prescribed. 31. Use of Details Collected by Other Bodies: At the time of commencement of this Act, the Department may, as per a decision of the Government of Nepal, use personal or biometric details of persons collected by bodies authorized under the prevailing law, details and data in electronic form, for the purpose of the Identity Card. 32. Updating Details: (1) The Department may update the data repository on the following basis:- (a) Vital events registered under this Act and the prevailing law, (b) Details received from the concerned office or body as prescribed. (2) For the purpose of sub-section (1), in the case of a district where the Identity Card has been implemented under Section 3, the details of such person in the data repository shall be automatically updated based on the registration of the vital event. (3) In the case of a district where the Identity Card has not been implemented, the details maintained upon registration of the vital event shall be recorded through electronic means, and details shall be updated by linking such record with the data repository. (4) While updating details in the data

repository, the update shall be made on the basis of the Identity Number of the same person whose details are to be updated. (5) If any doubt arises regarding the details registered by a person, the details in the electronic data repository shall be considered as the main basis. 33.

Biometric and Personal Details to be Confidential: (1) The biometric and personal details of a person kept in the data repository shall be kept confidential and shall not be made available to any other body except in the circumstances under Section 34. (2) Notwithstanding anything contained in sub-section (1), there shall be no bar for the Department to confidentially verify, deduplicate, and identify the details of persons in the data repository and provide the results thereof to the concerned body or authority under the law for the following purposes:- (a) If requested by an authority authorized under the prevailing law for the investigation and prosecution of an offence, (b) If requested by a court, (c) If requested by the concerned person. 34. **Access to and Use of Data Repository:** (1) For the purpose of providing public services, a body designated by the Government of Nepal may use the data and details in the Department as necessary, while maintaining the personal privacy of the person. (2) Government bodies and institutions fully owned by the Government of Nepal may be allowed to use the data and details in the Department as prescribed, while maintaining the personal privacy of the person. (3) For the purpose of verifying the details of the concerned person by a body providing services to citizens under the prevailing law, such body may be given controlled access to the data in the Department as prescribed. (4) The extent to which other bodies may have access to or use the data and details collected and stored under this Act shall be as prescribed by the Government of Nepal, not prejudicial to Section 33. 35.

Security of Data Repository: (1) For the systematic and secure management of the data repository, there shall be a Data Security Committee as follows:- (a) Secretary of the Ministry - Chairperson (b) Secretary, Office of the Prime Minister and Council of Ministers - Member (c) Director General - Member-Secretary (2) If a situation arises where all details of persons in the data repository need to be obtained at once for the purpose of this Act, the Data Security Committee under sub-section (1) shall obtain the data only with the mandatory presence of all members of the Committee. (3) If regular work cannot be performed from the primary data repository at the Department as a result of a disaster or technical malfunction in the system, the Data Security Committee under sub-section (1) shall make necessary arrangements to resume work from the backup data repository at the Department or the Government Data Center. (4) The Data Security Committee under sub-section (1) shall cause to make necessary arrangements for technical security, including security of the data repository, security of vital event registration records, security of the Identity Card, network-level security, and application-level security in the Identity Card and Registration Management System. (5) Necessary arrangements may be made so that the concerned person can view, as prescribed, the details of access obtained by any body or person to the personal details of that person in the data repository. (6) The meeting of the Committee under sub-section (1) shall be held at least twice a year. Other procedures relating to the meeting of the Committee shall be as determined by the Committee itself. Chapter-5 Institutional Arrangements 36. **Power to Issue Directions:** The Government of Nepal may make necessary decisions and issue directions on policy matters, including the operation, management, and security of the National Identity Card and Registration System. 37.

Coordination Committee: (1) For maintaining coordination among the concerned bodies regarding the management, implementation, and access to and use of the data repository of the National Identity Card and Registration, and for performing necessary work relating to the implementation of the Identity Card and Registration, there shall be a National Identity Card and Registration Coordination Committee as follows:- (a) Secretary of the Ministry - Chairperson (b) Inspector General of Nepal Police - Member (c) Joint Secretary,

Office of the Prime Minister and Council of Ministers (looking after the concerned division) - Member (d) Joint Secretary, Ministry (looking after the concerned division) - Member (e) Joint Secretary, Ministry of Finance, Government of Nepal (looking after the concerned division) - Member (f) Joint Secretary, Ministry of Federal Affairs and General Administration, Government of Nepal (looking after the concerned division) - Member (g) Joint Secretary, Ministry of Law, Justice and Parliamentary Affairs, Government of Nepal (looking after the concerned division) - Member (h) Joint Secretary, Ministry of Labour, Employment and Social Security, Government of Nepal (looking after the concerned division) - Member (i) Director General, Central Bureau of Statistics - Member (j) Director General, Department of Information Technology - Member (k) Director General - Member-Secretary (2) The procedure relating to the meeting of the Coordination Committee shall be as determined by the Committee itself. (3) Officials of other concerned bodies may be invited to the meeting of the Coordination Committee as required. 38. Functions, Duties, and Powers of the Coordination Committee: The functions, duties, and powers of the Coordination Committee shall be as follows:- (a) To coordinate the work of Identity Card and Registration Management, (b) To monitor and supervise the work and activities of the Department, (c) To make necessary coordination for implementing directives received from the Ministry regarding Identity Card and Registration Management, (d) To implement the security provisions determined and updated by the Data Security Committee, Provided that such security methods determined and updated for the security of the system shall remain confidential. (e) To recommend to the Government of Nepal regarding the upgrade of the Identity Card and Registration System, expansion of scope, system change, and overall management of the system, (f) To perform other functions as prescribed. 39.

Department of National Identity Card and Registration: (1) For the purpose of performing work relating to National Identity Card and Registration Management under this Act, there shall be a Department of National Identity Card and Registration under the Ministry. (2) As per a decision of the Government of Nepal, the Department may establish branch offices or units and conduct work. 40. Director General: (1) An officer of the Nepal Administration Service, Class I (First Class Gazetted) shall serve as the Director General of the Department. (2) The main responsibility for the operation, management, security, coordination, and supervision of the Identity Card and Registration System shall lie with the Director General. (3) In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Director General shall be as follows:- (a) To collect or cause to collect applications for National Identity Card and Registration, (b) To investigate, register, and issue Identity Numbers and Identity Cards based on applications submitted for National Identity Card and Registration, (c) To make necessary provisions for securely and systematically keeping the data repository and records relating to Identity Cards and Registration, (d) To maintain the confidentiality of the data repository and related records, (e) To make arrangements for information exchange between the National Identity Card and Registration System and the data repositories and information technology systems of other bodies, (f) To coordinate, monitor, supervise, and evaluate the work and activities performed by the Department as the administrative head of the Department, (g) To perform or cause to perform work by making necessary security arrangements in coordination with security bodies during the management of the National Identity Card and Registration System, (h) To implement or cause to implement the policy of the Government of Nepal relating to National Identity Card, Registration, and Social Security, (i) To contact and coordinate with national and international bodies and organizations relating to Identity Card and Registration technology with the approval of the Government of Nepal, and to exchange necessary cooperation for technology development and capacity building with such bodies or organizations, (j) To implement or cause to implement acts, rules, directives, guidelines, procedures, and standards relating to National Identity Card, Registration, and Social Security, (k)

To perform or cause to perform other functions assigned by the Government of Nepal, the Coordination Committee, and the Data Security Committee from time to time. Chapter-6 Offences and Punishments 41.

Offences and Punishments: (1) If any person commits any of the following acts, it shall be deemed to be an offence under this Act:- (a) Destroying, damaging, deleting, tampering with, rendering useless, giving to an unauthorized person, creating false information, stealing, or destroying any detail or information in the records and data repository relating to National Identity Card and Registration, or damaging the physical infrastructure, electronic data, or data system including the data repository, computer system, or network structure with the intention of stealing or destroying, (b) Stealing, damaging, destroying, or unauthorizedly altering any computer program, computer software, computer system, or computer resource code (source code) used for the data repository, communication network, or Identity Card printing, (c) Submitting false details or creating false or fake documents for obtaining an Identity Card or a certificate of registration of a vital event, (d) Counterfeiting or forging an Identity Card or a certificate of registration of a vital event, (e) Breaching the confidentiality of details in the data repository, Identity Card, and related records except as provided in this Act or the prevailing law, (f) Issuing or causing to issue an Identity Card or a certificate of registration of a vital event despite clear grounds that the details are false, (g) Obstructing the work or service relating to the collection, processing, or storage of details relating to National Identity Card and Registration, or the provision of services, or work related thereto, (h) Arbitrarily adding, removing, erasing, or correcting details in an Identity Card or a certificate of registration of a vital event, (i) Obtaining an Identity Card under Section 47 by submitting false details, or arbitrarily adding, removing, erasing, or correcting details in such Identity Card, (j) Committing any other act contrary to this Act or the rules made under this Act. (2) A person committing an offence under clause (a) or (b) of sub-section (1) shall be liable to imprisonment for a term of five years to ten years and a fine of five hundred thousand rupees to one million rupees, in addition to the recovery of damages caused. (3) A person committing an offence under clause (c), (e), or (f) of sub-section (1) shall be liable to imprisonment for a term of two years to five years and a fine of twenty thousand rupees to fifty thousand rupees. (4) A person committing an offence under clause (d) of sub-section (1) shall be liable to an additional twenty-five percent of the punishment prescribed for fraud or forgery under the prevailing law. (5) A person committing an offence under clause (g), (h), (i), or (j) of sub-section (1) shall be liable to imprisonment for a term of three months to six months and a fine of ten thousand rupees to fifty thousand rupees. (6) A person who abets or acts as an accessory in any manner in the commission of any offence under sub-section (1) shall be liable to half the punishment prescribed for the principal offender.

Chapter 1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "National Identity Card and Registration Act, 2076".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Biometric details" means biometric details as referred to in sub-section (3) of Section 7.

(b) "Data repository" means the electronic data repository under Section 30, and the term also denotes a registry or electronic record established for the purpose of storing data.

(c) "Prescribed" or "as prescribed" means prescribed or as prescribed in the Rules framed under this Act.

(d) "Register book" means the register book established for maintaining registration and civil records, and the term also denotes a data repository developed using modern information technology.

(e) "Registration" means the act of maintaining records revealing the identity of a citizen and registering vital

events.

(f) "Registrar" means the Registrar under Section 17.

(g) "Identity number" means the national identity number issued under Section 6.

(h) "Identity card" means the National Identity Card issued under Section 9.

(i) "Person eligible to obtain an Identity Card" means a person who meets the eligibility under Section 4.

(j) "Migration" means the act of permanently moving from one local level to another local level within Nepal or from one ward to another ward within the same local level, and the term also denotes the act of migrating abroad or migrating from abroad to Nepal, as well as temporarily migrating for a period exceeding one hundred and eighty days.

(k) "Ministry" means the Ministry of Home Affairs of the Government of Nepal.

(l) "Director General" means the Director General of the Department.

(m) "National Identity Management Information System" means an electronic data storage system based on information technology established by the Government of Nepal for the purpose of integrated management of information and details of citizens for the distribution of National Identity Cards and linking this with services, facilities and development plans available from the State.

(n) "Department" means the Department of National Identity Card and Registration.

(o) "Personal details" means the name, surname, address, gender, date of birth, name of father, mother, spouse, grandfather, grandmother of a person which reveals the identity of the person, and related details, and the term also denotes personal details relating to a person's qualifications, profession, occupation, income, and ownership held in any office or body of the Government of Nepal.

(p) "Vital event" means the birth, death, marriage, divorce and migration of a person.

(q) "Coordination Committee" means the Coordination Committee under Section 37.

(r) "Local authority" means the Chief District Officer of the concerned district, and the term also denotes any other authority designated by the Government of Nepal by publishing a notification in the Nepal Gazette.

(s) "Local level" means a Rural Municipality or a Municipality.

Chapter 2

National Identity Card and Identity Number

3. Application of Identity Card: The National Identity Card shall come into effect in the district designated by the Government of Nepal by publishing a notification in the Nepal Gazette from the date specified in such notification. 4. Eligibility to Obtain an Identity Card: (1) A person who has acquired Nepali citizenship or has attained eligibility to acquire Nepali citizenship pursuant to the prevailing law shall be eligible to obtain a National Identity Card under this Act. No Nepali citizen shall be denied from obtaining a National Identity Card.

(2) Notwithstanding anything contained in sub-section (1), a Nepali citizen who has not attained the age for acquiring citizenship may obtain a minor National Identity Card as prescribed. 5. Duty to Provide Information: It shall be the duty of the concerned person to provide the details required for the identity number and Identity Card, to obtain the Identity Card containing the identity number, and to inform the local authority if there is any change in the details mentioned in the Identity Card or if it becomes unusable for any reason. 6. Identity Number: (1) While issuing an Identity Card, a national identity number shall be issued by the Director General to a person eligible to obtain an Identity Card in a non-repetitive manner.

(2) The identity number under sub-section (1) shall remain valid even after the death of the person who obtained the identity number, or if the Identity Card of such person is cancelled or ceases to be effective for any reason.

(3) While registering the birth of a child of a Nepali citizen residing in a district where the Identity Card has

come into effect pursuant to Section 3, the local Registrar shall obtain an identity number as prescribed from the Department and provide such identity number to the concerned person.

(4) Biometric details of the concerned person shall not be required for providing an identity number under sub-section (3).

(5) Notwithstanding anything contained in sub-section (4), in a situation where a minor National Identity Card is required to be issued, the prescribed personal and biometric details shall also be provided. Provided that, a person who has obtained a minor National Identity Card shall provide biometric details again when taking the National Identity Card under this Act.

(6) Other provisions relating to the identity number shall be as prescribed. 7.

Application Required to Obtain Identity Card: (1) A person residing in a district where the Identity Card has come into effect pursuant to Section 3 and who has attained the age of sixteen years at the time such Identity Card comes into effect shall submit an application to the local authority to obtain an Identity Card within two years from the date such Identity Card came into effect in that district, and a person who attains the age of sixteen years after the Identity Card has come into effect shall submit an application within two years from the date of attaining such age. (2) A person submitting an application under sub-section (1) shall mention the identity number if such person has obtained one, or state the same if such person has not obtained an identity number. (3) Upon receipt of an application under sub-section (1), the local authority shall take the prescribed personal and biometric details including a digital photo clearly showing the facial features, digital fingerprints of all ten fingers of both hands, iris scan, signature of the applicant. Provided that, while collecting biometric details, in the case of a person who does not have some or all fingers, as many biometric details as possible shall be taken noting the reason thereof. (4) If a person who fails to apply for an Identity Card within the period under sub-section (1) later applies requesting an Identity Card, such person shall also pay the prescribed late fee. (5) The format of the application to be submitted under this section and the details of documents to be submitted along with the application shall be as prescribed. (6) Arrangements shall be made so that applications under this section can also be submitted in the prescribed electronic format. 8. **Inquiry into Application:** (1) The local authority shall conduct necessary inquiries based on the application received under Section 7. (2) During the course of necessary inquiries under sub-section (1), the local authority may request additional documents or details from the applicant and conduct further inquiries if deemed required. (3) If, upon inquiry conducted by the local authority under sub-section (1), the applicant is found eligible to obtain an Identity Card, the local authority shall recommend to the Department to issue the Identity Card after receiving the required personal and biometric details under this Act. 9.

Issuance of Identity Card: (1) The local authority shall send the details including the application of the person recommended for issuance of the Identity Card under Section 7 and Section 8 to the Department for the purpose of archiving and processing such details. (2) Upon maintaining the record of the details received under sub-section (1), the Director General shall issue a National Identity Card based on smart card technology containing biometric details, an electronic chip, and security features. (3) The following details of the concerned person shall be mentioned visibly on the visual side of the Identity Card:- (a) Name, surname, (b) Date of birth, (c) Gender, (d) Nationality, (e) Identity number, (f) Photo, (g) Date of issue of Identity Card and issuing authority, (h) Permanent address, (i) Type of citizenship and citizenship number (in the case of a person who has obtained a citizenship certificate). (4) An Identity Card shall be issued to a person eligible for Nepali citizenship who has submitted an application for the Identity Card based on citizenship, and to a person who has not obtained citizenship but is eligible to obtain Nepali citizenship based on proofs as prescribed. (5) The details to be attached for a minor National Identity Card, the format of the Identity Card, and other procedures shall be as prescribed. 10. **Validity and Use of Identity Card:** (1) Notwithstanding

anything contained in the prevailing law, after the Identity Card comes into effect, the Identity Card shall be required to be presented to obtain any service or facility provided by bodies or institutions owned by the Government of Nepal or the private sector, or when requesting such service or facility.

Provided that, if a person's details can be viewed based on the identity number, such facility may be obtained based on the identity number even without the Identity Card.

(2) The Identity Card shall be recognized as the primary basis for obtaining public services and as proof of identity of a person.

(3) Where any government or private institution has issued a particular identity card for providing service or where a particular identity card is required for such purpose, the identity number or the Identity Card under this Act may be used instead of such identity card.

(4) For the purpose of using the identity number or Identity Card under sub-section (3), the concerned government or private institution shall develop the necessary infrastructure, and the Ministry may grant access to such institution to prescribed details among the details collected under this Act upon collecting the prescribed fee.

(5) After the details contained in identity cards or certificates issued for any purpose pursuant to the prevailing law are included in the National Identity Management Information System under this Act, the Government of Nepal may publish a notification in the Nepal Gazette and make necessary arrangements so that the work of such identity cards or certificates can be performed by the National Identity Card.

(6) Other provisions relating to the validity and use of the Identity Card shall be as prescribed. 11. Maintaining Records: (1) Records of the following details of the person issued the Identity Card or identity number shall be maintained in the electronic chip of the Identity Card issued under this Act and in the National Identity Management Information System:-

- (a) Name, surname,
- (b) Date of birth,
- (c) Gender,
- (d) Nationality,
- (e) National Identity Number,
- (f) Date of issue of Identity Card and issuing authority,
- (g) Photo,
- (h) Address (permanent and temporary),
- (i) Type of citizenship and citizenship number (in the case of a person who has obtained a citizenship certificate),
- (j) Biometric details,
- (k) Name of father, mother,
- (l) Name of grandfather, grandmother,
- (m) Name of spouse,
- (n) Other details as prescribed.

(2) The procedure for updating the personal and biometric details of a person who has obtained an Identity Card and issuing an updated Identity Card based on that shall be as prescribed. 12.

Correction of Details: (1) If there is any error in the details mentioned in the Identity Card or if details need to be added or removed, the concerned person shall submit an application in the prescribed format to the prescribed body or authority for correcting or adding/removing such details. (2) Details may be corrected based on the application under sub-section (1). (3) The identity number shall not change when correcting details under this section. 13. Cancellation of Identity Card: (1) Amended by the Some Nepal Acts

Amendment Act, 2082. The Ministry or an authority designated by the Ministry may cancel the Identity Card in any of the following circumstances:- (a) If a person who is not eligible under Section 4 has obtained an Identity Card, (b) If an Identity Card was obtained by submitting false details, (c) If a foreign citizen has obtained an Identity Card contrary to this Act, (d) If the person who obtained the Identity Card is not a Nepali citizen. (2) A person aggrieved by a decision to cancel the Identity Card under sub-section (1) may appeal to the concerned High Court within thirty-five days from the date of knowledge of such decision. 14. Identity Card Ceasing to Be Effective: (1) If the person who obtained the Identity Card dies, the Identity Card of the deceased shall cease to be effective. (2) In the situation where the Identity Card ceases to be effective under sub-section (1), the record thereof shall be updated and the details of the deceased contained in the data repository and records shall be kept secure. 15. Recording of Inquiry: (1) If action for cancellation of the Identity Card obtained by a person under Section 13 is initiated, the Department shall record in the electronic record related to the Identity Card of the concerned person that the action is ongoing, prohibiting the use of the Identity Card until the conclusion of the action. (2) If the Identity Card appears to be maintainable from the action under sub-section (1), arrangements shall be made so that the record of such inquiry remains only in the data repository. 16.

Provision Regarding Duplicate: (1) If the Identity Card obtained under this Act is lost, destroyed, becomes unusable, if the details on the visual side of the Identity Card need to be changed, or if the Identity Card cannot be used for other reasons, the concerned person shall submit an application in the prescribed format to the local authority to obtain a duplicate thereof. (2) If an application is submitted under sub-section (1) and upon inquiry the fact is found to be true, the local authority shall forward it to the Department with a recommendation, and the Department shall record such fact and provide a duplicate Identity Card to the applicant upon collecting the prescribed fee. (3) Other provisions relating to the duplicate Identity Card shall be as prescribed. Chapter 3 Provisions Relating to Registration 17. Registrar: (1) For the purpose of this Act, the Director General of the Department shall be the Central Registrar. (2) A civil servant authorized to act as the administrative chief of the ward office of each Rural Municipality or Municipality, an officer designated to perform registration related work at Nepali missions abroad, and other office bearers designated by the Director General shall act as the Local Registrar, working under the authority of the Central Registrar. (3) For registration management, each ward office and other offices designated by the Ministry shall act as local registration offices. 18.

Notification of Vital Events: (1) In the following circumstances, the following persons shall notify the Local Registrar's office within thirty-five days of the occurrence of such event, by filling in the prescribed form, for the registration of the vital event:- (a) Notification of birth by the father or mother, and in their absence, by a member of the family who has attained the age of eighteen years, (b) Notification of death by the father, mother, spouse, son or daughter, and in their absence, by a member of the family who has attained the age of eighteen years, (c) Notification of marriage by both the husband and wife, (d) Notification of divorce by any one of the concerned persons whose marriage has been dissolved, (e) Notification of migration by a member of the family who has attained the age of eighteen years. (2) If the vital event occurred outside Nepal, the person obligated to give notice under sub-section (1) shall give notice to the concerned mission within thirty-five days, or within thirty-five days after arriving in Nepal at the Local Registrar's office. (3) The person obligated to give notice of a vital event under sub-section (1) may give an authorized power of attorney to any person for the registration of such notice. (4) In the absence of a person obligated to give notice of a vital event under sub-section (1), the person prescribed shall give such notice. (5) Arrangements may be made so that notices of vital events under this section can be given through electronic means as prescribed. 19.

Registration of Vital Events: (1) Upon receipt of the notice under Section 18, the Local Registrar or the authorized employee of the mission shall register such event in the relevant register book by doing the following:- (a) Checking whether the form filled by the person giving the notice is correct, and if not correct, getting it corrected, and (b) If the person giving the notice is illiterate, filling the form himself or causing it to be filled according to what the person says, reading it out, and obtaining the person's thumbprint. (2) While registering a notice of divorce, registration shall be done after also considering the decision made by the court in that regard. (3) If a person comes for registration of a vital event after the expiry of the period under sub-section (1) or (2) of Section 18, such vital event shall be registered upon collecting the prescribed late fee. (4) After a vital event is registered under this section, the Local Registrar or the mission shall send the details thereof to the Department. (5) Based on the details received under sub-section (4), the Department shall update the details in the personal record of the concerned person. (6) If any vital event of a foreigner residing in Nepal is required to be registered, the foreigner shall notify the Local Registrar of the place where he/she resides along with the prescribed evidence. (7) While giving notice under sub-section (6), in the case of a foreign citizen whose diplomatic mission is present in Nepal, a recommendation from the concerned diplomatic mission shall also be submitted. (8) After receiving the notice under sub-section (6), the Local Registrar shall conduct necessary inquiries and register the vital event of such foreigner. (9) Other provisions relating to giving notice of vital events of foreigners residing in Nepal and registering vital events shall be as prescribed. 20. Issuance of Certificate: (1) After the notice of a vital event is registered under Section 19, the Local Registrar shall issue a certificate of registration of the vital event to the person under sub-section (1) of Section 18. (2) While registering vital events other than the death registration of a person residing in a district where the Identity Card has come into effect pursuant to Section 3, the certificate of registration of such vital event shall be issued only after an identity number has been obtained under this Act. (3) Other provisions relating to the issuance of certificates of vital events under this section shall be as prescribed. 21.

Prohibition on Registration and Issuance of Certificate: (1) Notwithstanding anything contained elsewhere in this Act, vital events including marriages that are automatically void pursuant to the prevailing law shall not be registered and certificates thereof shall not be issued. (2) If a vital event is brought for registration under sub-section (1), a separate record of such event shall be kept and it shall be submitted to the concerned body or authority for action pursuant to the prevailing law. (3) Nothing contained in this section shall adversely affect the matter of having to register the birth of a child born as a result of a marriage that is automatically void. 22. Issue of Copy of Registration Certificate: (1) If the registration certificate issued under Section 20 is lost, destroyed in any way, or its unusability is proven, the concerned person shall submit an application to the office of the concerned Local Registrar. (2) If the content of the application submitted under sub-section (1) appears reasonable, the concerned Local Registrar shall issue a copy of the registration certificate upon collecting the prescribed fee. 23. Deployment of Staff for Preparing Family Roster: (1) If it appears necessary to prepare a roster for the purpose of registering vital events and preparing civil records, the Ministry may deploy staff for such work. (2) It shall be the duty of the concerned person to provide the details requested or answer the questionnaire asked by the staff deployed under sub-section (1). 24. Validity of Registration: The certificate of registration provided under Section 20 shall be evidence of the occurrence of the vital event. Such evidence may be submitted to any office and court and used in personal transactions. Provided that, if a person is proven to have obtained the registration certificate by submitting false details, such registration certificate shall be cancelled by the local authority. 25. Correction of Details: Amended by the Some Nepal Acts Amendment Act, 2082.(1) If the name, surname, age or other details mentioned in a certificate of registration of a vital event need to be corrected, the concerned person may submit an application once in the prescribed format to the Local Registrar's office. (2) Upon receipt of the application submitted under

sub-section (1), the Local Registrar shall conduct an inquiry in that regard and, if deemed appropriate, may correct Added by the Some Nepal Acts Amendment Act, 2082. once the age, name, surname or other details contained in the register book and the registration certificate. (3) The Local Registrar shall also provide information of the correction made under sub-section (2) to the Department.

Based on the details received, if the concerned person has an identity number, the Department shall also correct the details of such person in that identity number.

(4) Notwithstanding anything contained in the prevailing law, the Amended by the Some Nepal Acts Amendment Act, 2082. details of any person contained in the register book under this Act and the registration certificate provided shall not be corrected more than once. 26. Inspection of Vital Event Register Book: If the concerned person wishes to see the vital event and civil record register book kept at the office of the concerned Local Registrar, the concerned Local Registrar shall allow inspection of the register book upon collecting the prescribed fee. 27. Sending of Details: (1) The Local Registrar shall send details of the vital events registered each month to the Central Registrar and the concerned body of the provincial government as soon as possible.

(2) Based on the details received under sub-section (1), the Central Registrar and the concerned body of the provincial government shall update the records and publish an annual report. 28. Duty to Render Assistance: (1) If a Rural Municipality, Municipality, or Ward Office learns that a vital event requiring registration under this Act has occurred, it shall remind and persuade the concerned person and render necessary assistance in registering the notice of such event.

(2) It shall be the duty of the concerned Rural Municipality, Municipality, and the body administering local administration to render necessary assistance to the staff or Registrar deployed in the course of work related to the National Identity Card and Registration required to be performed under this Act or the Rules framed under this Act. 29. Special Provisions Relating to Event Registration: (1) A person who adopts a son or daughter pursuant to the prevailing law shall register the notice thereof with the concerned Local Registrar.

(2) If a person gives birth to a stillborn child or a child dies immediately after birth, notice thereof may be registered with the Local Registrar.

(3) Other provisions relating to the registration of notices submitted under sub-section (1) or (2) and issuing certificates after registering events under this section shall be as prescribed. Chapter 4

Electronic Data Repository Management

30.

Establishment of Electronic Data Repository: (1) There shall be a central electronic data repository for the integrated storage and use of personal and biometric details collected under this Act. (2) Arrangements shall be made to link the data repository established under sub-section (1) with data repositories existing in various government offices and bodies. (3) Details collected by the province, district and local level pursuant to the prevailing law may be linked to the data repository under sub-section (1). (4) Arrangements shall be made for backup of the data stored under sub-section (1) at the Department as well as at a government data center designated by the Government of Nepal. (5) Other provisions relating to data entry, backup, data correction and use in the data repository under this section shall be as prescribed. 31. Use of Details Collected by Other Bodies: At the time of commencement of this Act, the Department may, by a decision of the Government of Nepal, use for the purposes of the Identity Card the personal or biometric details of a person collected by an authorized body pursuant to the prevailing law, and details and data available in electronic form. 32. Updating Details: (1) The Department may update the data repository based on the following:- (a) Vital events registered under this Act and the prevailing law, (b) Details received from the concerned office or body as

prescribed. (2) For the purpose of sub-section (1), in the case of a district where the Identity Card has come into effect under Section 3, the details of such person in the data repository shall be automatically updated based on the registration of the vital event. (3) In the case of a district where the Identity Card has not come into effect, the details maintained by registering vital events shall be recorded through electronic means, and details shall be updated by linking such record with the data repository. (4) While updating details in the data repository, the update shall be made based on the identity number of the person whose details are to be updated. (5) In case of doubt regarding the details registered by a person, the details in the electronic data repository shall be considered the primary basis. 33.

Biometric and Personal Details to Be Confidential: (1) The biometric and personal details of a person in the data repository shall be kept confidential and shall not be made available to any other body except in the situation under Section 34. (2) Notwithstanding anything contained in sub-section (1), for the following purposes, the Department may confidentially verify, deduplicate and identify the details of a person in the data repository and provide the result thereof to the concerned body or authority pursuant to law:- (a) If requested by an authority authorized pursuant to the prevailing law for the investigation and prosecution of an offense, (b) If requested by a court, (c) If requested by the concerned person. 34. **Access to and Use of Data Repository:** (1) For the purpose of providing public services, a body designated by the Government of Nepal may use the data and details in the Department as required, maintaining the personal privacy of the individual. (2) Bodies and institutions wholly owned by the Government of Nepal may be permitted to use the data and details in the Department as prescribed, maintaining the personal privacy of the individual. (3) For the purpose of verifying the details of the concerned person, a body providing services to citizens pursuant to the prevailing law may be given controlled access to the data in the Department as prescribed. (4) The extent to which other bodies may have access to or use the data and details collected and stored under this Act shall be as determined by the Government of Nepal, without prejudice to Section 33. 35.

Security of Data Repository: (1) For the systematic and secure maintenance of the data repository, there shall be a Data Security Committee as follows:- (a) Secretary of the Ministry - Chairperson (b) Secretary, Office of the Prime Minister and Council of Ministers - Member (c) Director General - Member-Secretary (2) If a situation arises where all the details of a person in the data repository need to be obtained at once for the purpose of this Act, the Data Security Committee under sub-section (1) shall make such data obtainment only with the mandatory presence of all members of that Committee. (3) If, as a result of a disaster or technical glitch in the system, regular work cannot be performed from the primary data repository at the Department, the Data Security Committee under sub-section (1) shall make necessary arrangements to resume work from the backup data repository at the Department or a government data center. (4) The Data Security Committee under sub-section (1) shall cause necessary arrangements to be made for technical security including security of the data repository in the Identity Card and registration management system, security of vital event registration records, security of the Identity Card, network-level security, and application-level security. (5) Necessary arrangements may be made so that the concerned person can view the details of access obtained by any body or person to the personal details of that person in the data repository, as prescribed. (6) The meeting of the Committee under sub-section (1) shall be held at least twice a year. Other procedures relating to the meeting of the Committee shall be as determined by the Committee itself. Chapter 5 Institutional Arrangements 36. **Authority to Give Directions:** The Government of Nepal may make necessary decisions and give directions on policy matters including the operation, management, and security of the National Identity Card and Registration System. 37.

Coordination Committee: (1) For maintaining coordination among concerned bodies regarding the

management, implementation, access to and use of the data repository of the National Identity Card and Registration, and for performing necessary work related to the implementation of the Identity Card and Registration, there shall be a National Identity Card and Registration Coordination Committee as follows:- (a) Secretary of the Ministry - Chairperson (b) Inspector General of Nepal Police - Member (c) Joint Secretary, Office of the Prime Minister and Council of Ministers (looking after the concerned Division) - Member (d) Joint Secretary of the Ministry (looking after the concerned Division) - Member (e) Joint Secretary, Ministry of Finance, Government of Nepal (looking after the concerned Division) - Member (f) Joint Secretary, Ministry of Federal Affairs and General Administration, Government of Nepal (looking after the concerned Division) - Member (g) Joint Secretary, Ministry of Law, Justice and Parliamentary Affairs, Government of Nepal (looking after the concerned Division) - Member (h) Joint Secretary, Ministry of Labour, Employment and Social Security, Government of Nepal (looking after the concerned Division) - Member (i) Director General, Central Bureau of Statistics - Member (j) Director General, Department of Information Technology - Member (k) Director General - Member-Secretary (2) The procedures relating to the meetings of the Coordination Committee shall be as determined by the Committee itself. (3) Officials of other concerned bodies may be invited to the meetings of the Coordination Committee as required. 38. Functions, Duties and Powers of the Coordination Committee: The functions, duties and powers of the Coordination Committee shall be as follows:- (a) To coordinate the Identity Card and registration management work, (b) To monitor and supervise the work and proceedings of the Department, (c) To carry out necessary coordination to implement the directives received from the Ministry regarding Identity Card and registration management, (d) To implement the security related provisions determined and updated by the Data Security Committee, Provided that such security methods determined and updated for the security of the system shall remain confidential. (e) To recommend to the Government of Nepal regarding the upgrade, expansion of scope, modification, and overall management of the Identity Card and registration system, (f) To perform other functions as prescribed. 39.

Department of National Identity Card and Registration: (1) For the purpose of performing work related to National Identity Card and Registration management under this Act, there shall be a Department of National Identity Card and Registration under the Ministry. (2) The Department may establish branch offices or units and operate its functions as per the decision of the Government of Nepal. 40. Director General: (1) An officer of the Nepal Administrative Service of the gazetted first class shall serve as the Director General of the Department. (2) The main responsibility for the operation, management, security, coordination and supervision of the Identity Card and registration system shall be of the Director General. (3) In addition to the functions, duties and powers written elsewhere in this Act, the functions, duties and powers of the Director General shall be as follows:- (a) To collect or cause to collect applications for the National Identity Card and Registration, (b) To conduct inquiries into applications submitted for the National Identity Card and Registration, register them, and issue the identity number and Identity Card, (c) To make necessary arrangements for securely and systematically maintaining the data repository and records related to the Identity Card and Registration, (d) To maintain the confidentiality of the data repository and related records, (e) To make arrangements for the exchange of information between the National Identity Card and Registration System and the data repositories and information technology systems of other bodies, (f) To coordinate, monitor, supervise and evaluate the work proceedings performed by the Department as its administrative chief, (g) To perform or cause to perform work during the management of the National Identity Card and Registration System by also arranging necessary security in coordination with security agencies, (h) To implement or cause to implement the Government of Nepal's policy on National Identity Card, Registration and Social Security, (i) To contact and coordinate with national and international bodies and

organizations related to Identity Card and registration technology upon obtaining approval from the Government of Nepal, and to exchange necessary assistance for technology development and capacity building with such bodies or organizations, (j) To implement or cause to implement Acts, Rules, directives, instructions, procedures and standards related to National Identity Card, Registration and Social Security, (k) To perform or cause to perform other functions assigned from time to time by the Government of Nepal, the Coordination Committee and the Data Security Committee. Chapter 6 Offenses and Penalties 41.

Offenses and Penalties: (1) If anyone commits the following act, it shall be deemed an offense under this Act:- (a) Destroying, damaging, deleting, tampering with, making unusable, providing to an unauthorized person, creating false information, stealing, or damaging the data repository, computer system or network infrastructure and other physical infrastructure, electronic data or data system with the intention of destroying the details or information in the record or data repository related to the National Identity Card and Registration, (b) Stealing, damaging, destroying, or making unauthorized changes to any computer program, computer software, computer system, or computer resource code (source code) used for the data repository, communication network, or printing of the Identity Card, (c) Submitting false details or preparing false or fake documents for obtaining the Identity Card or certificate of registration of a vital event, (d) Counterfeiting or forging the Identity Card or certificate of registration of a vital event, (e) Breaching the confidentiality of details contained in the data repository, Identity Card, and related records except as provided in this Act or the prevailing law, (f) Issuing or causing to issue Identity Cards or certificates of registration of vital events despite clear basis that the details are false, (g) Obstructing or hindering the work or service delivery related to